



Australian Government
Attorney-General's Department

MC21-048015

6 January 2022

Dr Rich McLean
2 McCubbin St
FOOTSCRAY VIC 3011
drichmcleanwhistleblower@gmail.com

Dear Dr McLean

Thank you for your correspondence of 8 December 2021 to the Attorney-General and Minister for Industrial Relations, Senator the Hon Michaelia Cash regarding your experience with Comcare. The Attorney-General has requested that the Attorney-General's Department respond to you on her behalf.

I am sorry to hear of the difficulties you are currently experiencing.

I note that you have raised a number of legal matters in your correspondence. It is not appropriate for the Attorney-General as the First Law Officer, or the Attorney-General's Department, to provide legal advice to members of the public or intervene in private legal proceedings.

I can however provide you with the following information regarding whistleblower protections in Australia. Current or former public officials who suspect wrongdoing within the Commonwealth public sector can make a public interest disclosure under the *Public Interest Disclosure Act 2013*. The Act requires Commonwealth agencies to investigate suspected wrongdoing and take appropriate action. The Act provides public officials who make a disclosure under the Public Interest Disclosure Act with protection from reprisal action. Further information about the Public Interest Disclosure Act is available on the Commonwealth Ombudsman website: [Public Interest Disclosure - Commonwealth Ombudsman](#).

I understand from your correspondence that this may be a difficult time for you. You may wish to contact Lifeline, who provide crisis support by phone. They can be contacted 24 hours a day, seven days a week at: 13 11 14. You may also wish to contact SANE, who support people affected by complex mental health issues. You can contact them by email at helpline@sane.org or by phone from 10am–10pm, Monday–Friday: at 1800 187 263.

Thank you again for writing to us on this matter.

Yours sincerely

Security, Emergency and Administrative Law Branch
Attorney-General's Department